

BERO TECHNOLOGIES PRIVATE LIMITED

LIABILITY DISCLAIMER

1. Explicit Disavowal of Employment Relationship

- 1.1.** Bero functions exclusively as an electronic marketplace and technological intermediary. Bero is unequivocally **not the employer** of any Service Professional registered on the Platform.
- 1.2.** To actively address and satisfy the legal tests for independent contractor status as interpreted by Indian jurisprudence, Bero hereby declares that it does not hire, manage, supervise, direct, or control the physical execution of the services rendered by the Service Professionals.
- 1.3.** Service Professionals operate as autonomous micro-enterprises. Bero does not mandate working hours, does not enforce exclusivity, and does not provide tools, uniforms, or specialized training for the physical execution of tasks. The algorithmic dispatch facilitated by the Bipartite Graph Matching Engine constitutes a digital brokering mechanism and does not constitute administrative supervision or operational control. Bero expressly disclaims any liability under Indian labour and employment laws for statutory benefits, provident fund contributions, or minimum wage guarantees.

2. Disclaimer of Warranties and Quality of Work

- 2.1.** The Platform, including the matching algorithms and payment gateways, is provided on an "AS IS" and "AS AVAILABLE" basis without warranties of any kind, either express or implied.
- 2.2.** While Bero implements a Bayesian Reputation System and conducts preliminary KYC verifications to promote ecosystem safety, Bero makes no representations, warranties, or guarantees regarding the reliability, quality, safety, suitability, or timeliness of the physical services rendered by the Service Professionals. Bero does not guarantee that the Hungarian algorithm dispatch will perfectly fulfill subjective user expectations.
- 2.3.** Users expressly acknowledge that they engage with third-party Service Professionals entirely at their own risk. Bero assumes no responsibility for assessing the specific vocational competence of a Service Professional beyond the cryptographic and statistical reputation protocols maintained on the Platform.

3. Limitation of Damages

- 3.1.** To the maximum extent permitted by applicable Indian law, including the Consumer Protection Act, 2019, Bero, its directors, officers, employees, affiliates, and technology partners shall not be liable for any indirect, incidental, special, exemplary, punitive, or consequential damages.

3.2. This comprehensive exclusion of liability encompasses, but is not limited to, lost profits, lost revenue, lost data, personal injury, property damage, or emotional distress arising out of, in connection with, or otherwise resulting from any use of the Platform or the physical services rendered, regardless of the negligence (either active, affirmative, sole, or concurrent) of Bero, even if Bero has been advised of the possibility of such damages.

4. Maximum Liability Cap

In no event shall Bero's total aggregate liability to any User for all damages, losses, and causes of action (whether arising in contract, tort, statutory duty, or otherwise) exceed the total Platform facilitation fees (Take Rate) actually paid by the specific User to Bero for the discrete Service Request giving rise to the claim, or INR 5,000 (Indian Rupees Five Thousand), whichever is strictly lower.

5. No Responsibility for Third-Party Misconduct

Bero provides a digital marketplace conduit and assumes zero vicarious liability for the offline conduct, negligence, or willful misconduct of any User or Service Professional. Any disputes regarding the quality of the physical work, theft, property damage, or interpersonal conflict must be resolved directly between the Client and the Service Professional. While Bero may, at its sole discretion, assist in mediating disputes via its in-app mechanisms and Escrow hold capabilities, it assumes no legal obligation to compensate either party for the actions of the other.

6. Comprehensive Indemnification

You agree to fully indemnify, defend, and hold harmless Bero, its affiliates, directors, officers, and employees from and against any and all claims, demands, losses, liabilities, damages, and expenses (including reasonable legal and attorneys' fees) arising out of or in connection with: (i) Your use of the Platform; (ii) Your breach or violation of any provision of these Terms or applicable law; (iii) Your violation of the rights of any third party, including other Users or Service Professionals; or (iv) any physical harm, property damage, or financial loss caused by Your negligence or willful misconduct during the fulfillment of a Service Request.